

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Black	Team: Team # 3	CCRB Case #: 200807471	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 05/21/2008 10:45 PM	Location of Incident: § 87(2)(b)	Precinct: 46	18 Mo. SOL 11/21/2009	EO SOL 11/21/2009	
Date/Time CV Reported Wed, 05/21/2008 11:27 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/27/2008 3:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Cesar Gomez	26485	941024	046 PCT
2. POM Orlando Colon	26399	940992	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carlos Guadalupe	30018	938623	046 PCT
2. POM Steven Eromenok	15515	939531	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Orlando Colon	Abuse: PO Orlando Colon forcibly stopped § 87(2)(b)	§ 87(2)(b)
B.POM Cesar Gomez	Abuse: PO Cesar Gomez forcibly stopped § 87(2)(b)	§ 87(2)(b)
C.POM Orlando Colon	Force: PO Orlando Colon used physical force against § 87(2)(b)	§ 87(2)(b)
D.POM Cesar Gomez	Force: PO Cesar Gomez used physical force against § 87(2)(b)	§ 87(2)(b)
E.POM Orlando Colon	Abuse: PO Orlando Colon searched § 87(2)(b)	§ 87(2)(b)
F.POM Orlando Colon	Abuse: PO Orlando Colon damaged § 87(2)(b)'s property.	§ 87(2)(b)
G.POM Orlando Colon	Discourtesy: PO Orlando Colon spoke obscenely to § 87(2)(b) and individuals.	§ 87(2)(b)
H.POM Orlando Colon	Abuse: PO Orlando Colon threatened individuals with the use of force.	§ 87(2)(b)
I.POM Cesar Gomez	Discourtesy: PO Cesar Gomez spoke obscenely to § 87(2)(b)	§ 87(2)(b)

Synopsis

§ 87(2)(b) filed the following complaint by phone with the Internal Affairs Bureau (IAB), IAB log § 87(2)(b) on May 21, 2008 regarding an incident that occurred on the same day. This case was referred to the Civilian Complaint Review Board (CCRB) and was received on May 27, 2008.

On May 21, 2008 at approximately 10:45 PM, § 87(2)(b) left his grandmother's apartment, which is located inside of an apartment building at the corner of § 87(2)(b) in the Bronx. § 87(2)(b) was approached by two plainclothes police officer who the investigation identified as PO Orlando Colon and PO Cesar Gomez. § 87(2)(b) did not know that PO Colon and PO Gomez were police officers and thought that they were going to rob him, so he ran. PO Colon and PO Gomez grabbed § 87(2)(b) and pushed him against a gate (Allegations A and B). § 87(2)(b) fought with the officers because he did not believe that they were police officers. PO Colon and PO Gomez brought § 87(2)(b) to the ground and placed him in handcuffs (Allegation C and D). PO Colon searched § 87(2)(b) (Allegation E). PO Colon allegedly grabbed the pocket of § 87(2)(b)'s coat and pulled it, ripping the pocket (Allegation F). A group of individuals gathered nearby and PO Colon said, "What the fuck are you all doing here. We are cops" (Allegation G). PO Colon also threatened the individuals with force by showing them his gun (Allegation H). § 87(2)(b) attempted to use his phone to call his girlfriend and PO Gomez allegedly stated, "Get off the fucking phone." PO Gomez received an injury when he fought with § 87(2)(b) so PO Gomez allegedly stated "Look what the fuck you did to me. What if I was to fuck you up" (Allegation I).

[REDACTED]

Summary of Complaint

§ 87(2)(b) § 87(2)(b)

§ 87(2)(b) a § 87(2)(b) 5'5", 120 lbs., Hispanic male with black hair and brown eyes filed a complaint by phone with LAB on May 21, 2008 (encl. C 1-2). The case was referred to the CCRB and was received on May 27, 2008 (encl. C 3-4). § 87(2)(b) provided a statement at the CCRB on August 8, 2008 (encl. C 5-17). On November 12, 2008, § 87(2)(b) was contacted by phone and clarified several details in his initial statement (encl. G 5). § 87(2)(g)

On May 21, 2008 at approximately 8:00 PM, § 87(2)(b) left his job at § 87(2)(b) in the Bronx. § 87(2)(b)'s sister, § 87(2)(b) also worked there. § 87(2)(b) lived with § 87(2)(b)'s grandmother in a house near the intersection of § 87(2)(b) and § 87(2)(b) in the Bronx, though § 87(2)(b) did not know the exact address. § 87(2)(b) walked § 87(2)(b) to his grandmother's house and entered the home to visit.

After approximately one hour, § 87(2)(b) left the home and walked toward § 87(2)(b). § 87(2)(b) was talking on his cellular phone with his girlfriend, § 87(2)(b). Two plainclothes

Hispanic police officers came up from behind § 87(2)(b) PO Orlando Colon, who was identified by the investigation, was a 5'9", light-skinned Hispanic male, with a heavy muscular build. PO Cesar Gomez, who was also identified by the investigation, was a Hispanic male with a darker skin tone than PO Colon. PO Gomez was 5'6" and muscular. § 87(2)(b) did not know that they were police officers and thought that they were going to rob his cell phone, so § 87(2)(b) started to run.

§ 87(2)(b) ran only a few feet when one of the officers grabbed § 87(2)(b)'s right hand, twisted it behind his back, and slammed him against a gate. The officers told him to stay still, and they searched § 87(2)(b) PO Colon put his hand into the side pocket of § 87(2)(b)'s leather coat and ripped the pocket open. The officers searched his pants and jacket pockets. The officers asked why he was in the building and § 87(2)(b) explained that his grandmother lived there. § 87(2)(b) asked the officers to see their badges, but the officers refused. § 87(2)(b) "refused to give up without a fight" and tried to get away.

One of the officers grabbed § 87(2)(b) by his coat and threw § 87(2)(b) to the ground. PO Colon placed his knee in § 87(2)(b)'s back. PO Gomez stepped on § 87(2)(b)'s hand. PO Colon grabbed § 87(2)(b) by the head, and yelled, "Stay still." PO Colon attempted to "bang" § 87(2)(b)'s head to the ground, but § 87(2)(b) tried with all of his might to not let the officer hit his head against the ground. At one point, § 87(2)(b) got weak and could not hold his neck up, so his head hit the ground once. PO Colon and PO Gomez punched § 87(2)(b) on the side of his body approximately three times. An officer also hit § 87(2)(b) with an object, but § 87(2)(b) could not tell what the object was. § 87(2)(b) stated that he could not see the object, but it was something black. § 87(2)(b) thinks that the item may have been a flashlight. § 87(2)(b) had a cyst on his leg which was caused by a previous injury. The officers knelt § 87(2)(b) in his leg and struck the cyst from the prior injury.

The officers picked § 87(2)(b) off of the ground and told him to stay still. PO Colon grabbed § 87(2)(b) by his jacket and slammed § 87(2)(b)'s back against a nearby vehicle. PO Colon then brought § 87(2)(b) face down to the ground and said, "Stay still, I am trying to tell you we're cops." The officers then showed § 87(2)(b) their badges. PO Colon took out his handcuffs and handcuffed § 87(2)(b). § 87(2)(b) explained that as soon as he saw the handcuffs he assumed PO Colon and PO Gomez must be cops.

The incident drew a crowd of approximately fifteen people. The crowd was asking, "What are you doing to that kid. Leave him alone." The officers told the group "stop, we're cops," but the group would not stop. An officer then stated, "What the fuck are you all doing here? We are cops." The officer then showed his gun and stated, "I told you we're cops" and all the people moved back. [Even though § 87(2)(b) could not articulate which officer cursed and showed the crowd his firearm, the investigation determined that it was PO Colon.]

After § 87(2)(b) was handcuffed, the officers sat him on top of a nearby gate. The officers asked him where he lived and if he had any medical problems. § 87(2)(b) has asthma and was wheezing. § 87(2)(b) grabbed his phone as he was in handcuffs and pressed redial, calling his girlfriend. § 87(2)(b)'s girlfriend asked if he was okay because she heard a lot of noise and PO Gomez stated, "Get the fuck off of the phone."

PO Colon called someone over the phone and asked if they should "bring him in." PO Gomez then said to PO Colon, "Tell boss that I am badly hurt." PO Gomez's thumb was bleeding.

One of the officers either went inside of § 87(2)(b)'s grandmother's apartment building or yelled into the window of § 87(2)(b)'s grandmother's apartment to verify that § 87(2)(b)'s grandmother lives there. § 87(2)(b) came out of the building and told the officers that § 87(2)(b) was her brother and that his grandmother lived there. § 87(2)(b) told his sister that he was beat up by two cops. The officers asked § 87(2)(b) a few questions and then released § 87(2)(b). § 87(2)(b) told an officer, "I'm badly injured." § 87(2)(b) asked the officers if they could take him to the hospital. An officer stated, "If I take you to the hospital we are going to have to put you through the process. Put you back in handcuffs and then take you to

the hospital.” PO Gomez then said to PO Colon, “He wants to go to the hospital? Put the handcuffs back on him, we are going to have to take him through the process.” § 87(2)(b) told the officers, “Forget it. I don’t want to go to the hospital.”

At some point, § 87(2)(b) spoke Spanish and an officer said, “If you would have told me you were Latin, I would have went easy on you.” § 87(2)(b) asked him, “What are you trying to say, because of my skin color.” The officer stated, “No, you just shocked me because you started speaking Spanish.”

A marked van, driven by a uniformed, white male officer, arrived at the location. The officer arrived at the location after he was off the phone and never exited the police vehicle. PO Gomez issued § 87(2)(b) a summons for disorderly conduct. PO Gomez was bleeding and holding his thumb. PO Gomez told § 87(2)(b) “Look what the fuck you did to me. What if I was to fuck you up?”

§ 87(2)(b) suffered a bruise to his lower back. The bruise was not visible, but it was painful to the touch. § 87(2)(b) had scrapes to both of his knees, and on his left hand about four inches above his thumb. As § 87(2)(b) was walking home, he was in pain so he called 911, an ambulance came took him to § 87(2)(b).

Attempts to Identify Victims

§ 87(2)(b) stated that there was a group of individuals in the vicinity the incident. An officer spoke discourteously towards these civilians and threatened them with the use of force. § 87(2)(b) did not know who these individuals were and thus could not provide any contact information for anyone in the group. The incident occurred at approximately 10:45 PM, and the individuals were random people walking on the street, § 87(2)(g).

Results of Investigation

Civilians Not Interviewed

§ 87(2)(b) arrived at the location to verify that § 87(2)(b) had family in the building and was not present for the allegations made by § 87(2)(b). Therefore, § 87(2)(b) was not interviewed. § 87(2)(b) was on the phone with § 87(2)(b) for a portion of the incident, but was not at the incident location and would not have witnessed the allegations. § 87(2)(g)

Identification of Officers Interviewed

PO Gomez was identified by the summons he issued to § 87(2)(b). The 46th Precinct Roll Call on May 21, 2008 indicates that PO Gomez was working with PO Colon. § 87(2)(g)

Officer Statements PO Orlando Colon

PO Orlando Colon, a § 87(2)(b)-old, 5’10”, 196 lbs., Hispanic male with black hair and brown eyes was interviewed at the CCRB on October 28, 2008 (encl. D 2-4).

PO Colon worked from 8:00 PM on May 21, 2008 until 4:35 AM on May 22, 2008. PO Colon was assigned to the 46th Precinct Conditions Team. PO Colon was in plainclothes and was working with PO Gomez. PO

Carlos Guadalupe and PO Steven Eromenok were also in the conditions team, but they were assigned to an unmarked van. PO Colon and PO Gomez were on foot. PO Colon's memobook states that at 11:15 PM, one male was stopped at the corner of § 87(2)(b) and § 87(2)(b). The male refused to stop and offered resistance. The defendant was placed in handcuffs for the safety of the officers. After verifying the defendant's story, he was cut loose with a summons. The defendant refused medical attention and an AIDED card was prepared (encl. D 1).

On May 21, 2008 at approximately 11:10 PM, PO Colon observed § 87(2)(b) exiting a clean halls location in the vicinity of § 87(2)(b) and § 87(2)(b) in the Bronx. The officers were later able to determine was his father's building. There were no other reasons for approaching § 87(2)(b) other than him being inside of the clean halls building. PO Colon approached § 87(2)(b) took out his shield, and asked § 87(2)(b) what he was doing in the building. PO Colon could not remember what § 87(2)(b) said in response, but PO Colon did note that § 87(2)(b) did say something and then attempted to push his way between PO Colon and PO Gomez. PO Gomez was standing to the right of PO Colon. § 87(2)(b) was able to get slightly past the police officers. PO Colon put his hands on § 87(2)(b) grabbed his hand, and pushed him back first against the gate of a clothing store. PO Colon was trying to question § 87(2)(b) about what he was doing in the building and repeated that he was a police officer. § 87(2)(b) was screaming that they were attempting to rob him. § 87(2)(b) was screaming, "Get the fuck off of me. You are gonna rob me." PO Colon even took out his identification card to show § 87(2)(b) that he was a police officer, but § 87(2)(b) continued to scream, kick, flail his hands, and push.

PO Colon decided to place § 87(2)(b) into handcuffs, but he put up a fight. As PO Colon and PO Gomez attempted to handcuff § 87(2)(b) they all fell to the ground. PO Colon never punched § 87(2)(b) in the sides or hit § 87(2)(b)'s head against the ground as he was attempting to place § 87(2)(b) in handcuffs. PO Colon never struck § 87(2)(b) with an asp or a flashlight, stating that there was no opportunity to do so. It took PO Colon and PO Gomez slightly longer than one minute to get § 87(2)(b) in handcuffs. PO Gomez suffered scrapes to his knee from the struggle. PO Colon had no injuries.

After § 87(2)(b) was handcuffed, PO Colon frisked § 87(2)(b)'s coat pockets, pants pockets, and around his waistband. As PO Colon was frisking § 87(2)(b) he felt an object in one of § 87(2)(b)'s pockets. PO Colon believed the object was a weapon because it felt like a knife. PO Colon reached his hand into the pocket and removed the item, which turned out to be a PSP or iPod. PO Colon could not remember specifically which pocket he reached in. PO Colon did not go into any other pocket. PO Colon did not take § 87(2)(b)'s jacket pocket and pull it, causing it to rip.

§ 87(2)(b) told the officers that he was coming out of his father's apartment. PO Colon went to the apartment and spoke with his father. § 87(2)(b)'s father verified who he was, how he looked, and what he was wearing. PO Colon went back to the street and took § 87(2)(b) out of handcuffs. § 87(2)(b) then called his sister, who came downstairs and arrived on the scene. § 87(2)(b)'s sister wanted to make sure that her brother was okay. PO Colon called PO Guadalupe and PO Eromenok to the location. PO Colon or PO Gomez did not have summonses with them, so the other officers were called so a summons could be issued to § 87(2)(b). Both PO Colon and PO Gomez made the decision to issue § 87(2)(b) a § 87(2)(b) summons. PO Colon explained that the summons was issued because the officers had reason to stop and question § 87(2)(b). When they attempted to do so, § 87(2)(b) acted disorderly by refusing to stop, pushing the officers out of the way, and he was cursing and screaming.

§ 87(2)(b) told the officers that his leg hurt and requested medical attention. PO Colon told him that if he wanted the officers to get him medical attention that he would first have to come back to the 46th Precinct stationhouse and EMS would be called from there. § 87(2)(b) then refused, stating that he had work the next morning and to just give him the summons. An AIDED card was prepared.

There were some civilians on the opposite corner from where § 87(2)(b) was handcuffed. PO Colon was not sure what the civilians were doing. The civilians never made any statements and they did not get into the vicinity of PO Colon and PO Gomez as they attempted to arrest § 87(2)(b). No officer ever stated, “What the fuck are you all doing here. We are cops.” PO Gomez did not state to § 87(2)(b) “Look what the fuck you did to me. What if I fuck you up?”

PO Colon stated that he may have cursed at § 87(2)(b). PO Colon could not remember exactly what he said. PO Colon explained that he was trying to show § 87(2)(b) that he was a cop, because § 87(2)(b) kept stating that PO Colon was attempting to rob him. PO Colon showed § 87(2)(b) his badge, his identification card, his shield, his color of the day, and his vest. PO Colon was using the language to get § 87(2)(b) to relax, calm down, and ease up. § 87(2)(b) was too nervous and was yelling and screaming. PO Colon did not want people in the area to get the wrong impression and think that they were robbing him.

PO Cesar Gomez

PO Cesar Gomez, a § 87(2)(b)-old, 5’9”, 190 lbs Hispanic male with black hair and brown eyes filed an AIDED card on May 21, 2008 stating that § 87(2)(b) complained of leg pain due to a skin condition. The AIDED card notes that § 87(2)(b) refused medical attention (encl. D 5-9) PO Gomez also issued § 87(2)(b) a summons for § 87(2)(a) 160.50 (encl. C 11-12). PO Gomez was interviewed at the CCRB on November 7, 2008 (encl. D 10-12). § 87(2)(g)

PO Gomez worked from 8:00 PM on May 21, 2008 until 4:35 AM on May 22, 2008. PO Gomez was in plainclothes and was working conditions with PO Colon. PO Carlos Guadalupe and PO Steven Eromenok were in the same conditions team, but they were working separately from PO Gomez.

On May 21, 2008 at approximately 10:45 PM, PO Gomez and PO Colon approached § 87(2)(b) because he was exiting a “clean halls” building and asked, “We are NYPD. What are you doing in that building?” PO Gomez explained that since § 87(2)(b) was exiting a “clean halls” location, he had the authority to stop § 87(2)(b) and ask him if he knew anyone in the building. This authority is granted by the landlord. § 87(2)(b) pushed PO Gomez and PO Colon out of the way and began to fight with the officers. The officers did not have the opportunity to ask § 87(2)(b) any other questions. § 87(2)(b) was brought to the ground and struggled with the officers. § 87(2)(b) was handcuffed by PO Colon. PO Gomez never hit § 87(2)(b) with an asp or a flashlight. PO Gomez does not carry a flashlight, but he does carry an asp. PO Gomez never pushed § 87(2)(b)’s head against the ground. PO Gomez did not step on § 87(2)(b)’s hand. PO Gomez did not witness PO Colon make any of these actions.

§ 87(2)(b) was frisked for weapons and searched. PO Colon did not grab § 87(2)(b)’s pocket and rip his jacket. § 87(2)(b)’s jacket did not become ripped through the incident. PO Gomez could not remember if § 87(2)(b) attempted to use his cellular phone through the incident. PO Gomez did not remember stating, “Get the fuck off of the phone.”

PO Colon went into the “clean halls” building and verified that § 87(2)(b) had family members inside the building. PO Guadalupe and PO Eromenok responded to the location in a van and gave PO Gomez a summons to write for § 87(2)(b). § 87(2)(b) was released and issued a summons for § 87(2)(a) 160.50. There were civilians watching what was happening. The civilians were approximately a half a block away. PO Gomez did not remember stating, “What the fuck are you all doing here. We are cops.” PO Gomez did not remember showing any members of the crowd his gun. PO Gomez could not remember if he cursed during the incident. PO Colon may have cursed at § 87(2)(b). PO Gomez explained that he was not sure because he was fighting with § 87(2)(b) and he was not paying attention to what was being said. PO Gomez received a scraped knee and elbow from the struggle. PO Gomez was bleeding. PO Gomez never told § 87(2)(b) “Look what the fuck you did to me. What if I fuck you up?”

Officers Not Interviewed

§ 87(2)(b) stated that there was a white male officer in uniform that responded to the scene in a van. The roll call indicates that PO Guadalupe and PO Eromenok were working with PO Colon and PO Gomez. PO Colon and PO Gomez confirmed that they were working in the same conditions team as PO Guadalupe and PO Eromenok, but stated that PO Guadalupe and PO Eromenok did not come to the incident location until the end of the incident. § 87(2)(b) confirmed that the officer did not arrive at the location until after the allegations he is made took place. § 87(2)(g)

Medical Records (encl E 1-12)

§ 87(2)(b) was treated at § 87(2)(b) on § 87(2)(b). § 87(2)(b) complained that his hip hurt and he was given a prescription for a chronic abscess. § 87(2)(b) states that he received lacerations to his leg by being thrown to the ground and handcuffed by police officers. § 87(2)(b) had a musculoskeletal contusion to his left thigh.

NYPD Documents

Roll Call: The 46th Precinct Tour 1 Roll Call on May 22, 2008 confirms that PO Colon, PO Gomez, PO Guadalupe, and PO Eromenok were working conditions (encl. F 1-8).

Disposition of Summons: [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Police Officer CCRB History

During his two-year tenure with the NYPD, PO Colon has had no substantiated allegations with the CCRB (encl. B 1). During his two-year tenure with the NYPD, PO Gomez has had no substantiated allegations with the CCRB (encl. B 2).

Civilian CCRB History

§ 87(2)(b) has had no prior complaints with the CCRB (encl. B 3).

Civilian Criminal Conviction History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) alleged that he was forcibly stopped by two police officers. He also alleged that the same officers used force against him. § 87(2)(g)

§ 87(2)(b) alleged that an officer frisked and searched him. PO Colon admitted to conducting the search § 87(2)(g) § 87(2)(b) alleged that as the officer searched him, the officer ripped his jacket. § 87(2)(g)

§ 87(2)(b) stated that an officer spoke discourteously. Even though § 87(2)(b) noted that the officer used the language when addressing the group of individuals, PO Colon testified that he may have cursed at § 87(2)(b). § 87(2)(g) § 87(2)(b) alleged that an officer threatened the group of individuals with the use of force. Even though § 87(2)(b) could not specifically articulate which officer made the threat, he stated that it was the same officer that spoke discourteously to him. § 87(2)(g) § 87(2)(b) stated that the officer that was injured spoke discourteously toward him. PO Gomez received injuries, § 87(2)(g)

Undisputed Facts

It is undisputed that § 87(2)(b) attempted to evade PO Colon and PO Gomez. It is undisputed that PO Colon and PO Gomez forcibly stopped § 87(2)(b). It is undisputed that § 87(2)(b) resisted the officers and the officers used force to place him in handcuffs. It is undisputed that PO Colon frisked and searched § 87(2)(b).

Disputed Facts

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that he was forcibly stopped by PO Colon and PO Gomez. § 87(2)(b) stated that he left his grandmother's house and was speaking on the phone when he was approached by PO Colon and PO Gomez. § 87(2)(b) stated that he tried to run away from the officers, at which point they grabbed him and pushed him against a gate. PO Gomez and PO Colon both claimed to have asked § 87(2)(b) why he was in the building. PO Colon stated that § 87(2)(b) said something in response, pushed the officers, and then ran. PO Gomez claimed that as soon as the officers asked why he was in the building, § 87(2)(b) pushed the officers and then ran without responding to the question. § 87(2)(b) admitted that when he saw the officers, he attempted to flee, stating that he did not know that they were officers and that he thought that they were going to rob him of his cellular phone. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that PO Colon and PO Gomez used physical force against him. § 87(2)(b) stated that he did not know that PO Colon and PO Gomez were police officers so he “would not give up without a fight.” Even after the officers identified themselves, § 87(2)(b) contended that he did not believe them until after he saw their handcuffs. Based on § 87(2)(b) s own description of events, he was physically resisting the police officers. PO Colon and PO Gomez admit to using force to bring § 87(2)(b) to the ground and get him into handcuffs; however, both officers denied punching, kicking, or striking § 87(2)(b) with any objects. § 87(2)(b)

§ 87(2)(b) alleged that an officer was attempting to strike his head against the ground, § 87(2)(g) § 87(2)(b) received a contusion to his left leg. § 87(2)(b) had a cyst on his leg due to a prior medical condition. § 87(2)(b) § 87(2)(b) alleged that an officer hit the cyst during the struggle, causing the injury. § 87(2)(g)

§ 87(2)(b) alleged that he was frisked and searched by PO Colon. PO Colon admitted to frisked and searching § 87(2)(b) PO Colon stated that after § 87(2)(b) was handcuffed, he frisked § 87(2)(b) for weapons, at which time he felt a bulge in § 87(2)(b) s pocket. PO Colon believed that object could have been a knife, so he removed the object from § 87(2)(b) s pocket to discover that it was a PSP or an iPod. PO Gomez corroborates PO Colon’s statement. After the search, § 87(2)(b) was issued a summons for § 87(2)(a) 160.50. PO Colon and PO Gomez testified that the summons was given to § 87(2)(b) because he was fighting with the officers.

§ 87(2)(b) alleged that during the search, PO Colon pulled on his jacket pocket, ripping the jacket. § 87(2)(g) PO Colon and PO Gomez denied that § 87(2)(b) s jacket was ripped. § 87(2)(g)

§ 87(2)(b) alleged that PO Colon stated, “What the fuck are you doing here. We are cops.” PO Colon admitted that he may have cursed at § 87(2)(b) PO Colon could not remember what he said, but explained that he was attempting to get § 87(2)(b) to calm down. § 87(2)(b) did not believe that PO Colon and PO Gomez were police officers, so PO Colon may have cursed at § 87(2)(b) to get him under control. PO Colon explained that he needed § 87(2)(b) to calm down so people in the area did not get the wrong impression and think that they were robbing § 87(2)(b) PO Gomez also testified that PO Colon may have cursed at § 87(2)(b) PO Gomez could not articulate exactly what PO Colon said to § 87(2)(b) because he was struggling with § 87(2)(b) at the time and not paying attention to what was said. § 87(2)(g)

§ 87(2)(b) also alleged that PO Colon threatened individuals with the use of force by showing the individuals his gun. § 87(2)(b) was not able to provide any contact information or a name for any of the individuals.

§ 87(2)(g)

§ 87(2)(b) alleged that PO Gomez told him to “Get off the fucking phone.” § 87(2)(b) also alleged that PO Gomez stated, “Look what the fuck you did to me. What if I was to fuck you up?” PO Gomez denied making these statements. PO Gomez could not remember if he cursed at any other point during the incident, stating that he was fighting with § 87(2)(b) and not paying any attention to what was being said. PO Colon denied that PO Gomez made these statements to § 87(2)(b) § 87(2)(g)

Allegation A: PO Orlando Colon forcibly stopped § 87(2)(b)

Allegation B: PO Cesar Gomez forcibly stopped § 87(2)(b)

§ 87(2)(g) PO Colon and PO Gomez testified that the only reason they approached § 87(2)(b) was because he was exiting a “clean halls” building, at which time he attempted to flee so they effectuated a forcible stop. PO Colon and PO Gomez were outside the building when they observed § 87(2)(b) Barry Kamin’s New York Search and Seizure Law states that, “If an individual exits a trespass affidavit building, a police officer cannot approach that individual and request information merely because he exited the building” (encl. 1-2). This is supported in the NYPD Legal Guidelines for Citizen Encounters in Trespass Affidavit Building when it states, “It should be noted that when an officer is not in the building, merely observing an individual entering and exiting the building, or simply exiting the building, is not enough to conduct a stop” (encl. 3-17). § 87(2)(g)

New York State Law and NYPD Departmental Guidelines state that an officer must have “reasonable suspicion” of criminal activity in order to conduct a forcible stop of an individual. § 87(2)(g)

§ 87(2)(b) Barry Kamin’s New York Search and Seizure Law cites *People v. Holms* in that “flight alone cannot justify reasonable suspicion.” (encl. A 1-3). § 87(2)(g)

Allegation C: PO Orlando Colon used physical force against § 87(2)(b)

Allegation D: PO Cesar Gomez used physical force against § 87(2)(b)

PO Colon and PO Gomez used physical force against § 87(2)(b) § 87(2)(b) admitted to violently resisting PO Colon and PO Gomez, stating that he did not know that they were officers and that he thought that they were robbing him. Patrol Guide Procedure 203-11 states that, “Only that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody” (encl. 1-2). § 87(2)(g)

Allegation E: PO Orlando Colon searched § 87(2)(b)

PO Colon searched § 87(2)(b). As PO Colon and PO Gomez attempted to stop § 87(2)(b), § 87(2)(b) resisted and fought with the police officers. Criminal Procedural Law 150.20 indicates that an officer may choose to issue a summons rather than placing a civilian under arrest (encl. A 4). § 87(2)(g)

Allegation F: PO Orlando Colon damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that PO Colon intentionally ripped his jacket. PO Colon denied ripping the jacket, which is supported by PO Gomez's statement. § 87(2)(g)

Allegation G: PO Colon spoke obscenely to § 87(2)(b) and individuals.

PO Colon spoke discourteously to § 87(2)(b) and individuals. Patrol Guide Procedure 203-09, Public Contact – General, states that an officer is required to be courteous and respectful (encl. A). § 87(2)(g)

Allegation H: PO Colon threatened individuals with the use of force.

§ 87(2)(b) alleged that PO Colon threatened individuals with the use of force by showing the individual's his gun. § 87(2)(g)

Allegation I: PO Cesar Gomez spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO Gomez told him "Get off the fucking phone" and "Look what the fuck you did to me. What if I was to fuck you up?" PO Gomez denied making these statements, which is supported by PO Colon's statement. PO Gomez could not remember if he cursed at all doing the incident, § 87(2)(g)

Investigator:

Date:

Inv. Eric Black

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: